

for the first time at the oral proceedings but the objection involved a complex new set of facts. The board therefore refused to admit it.

For further cases where (prima facie) relevance was considered but not acknowledged, see e.g. T 102/16 (concerning D26), T 1877/16 (concerning D20 and D21).

- f) Late substantiation of lines of attack – additional complexity – procedural economy – submissions not admitted

In T 2227/15, applying Art. 13(1) RPBA 2020 as well as Art. 13(1) and (3) RPBA 2007, the board did not admit the appellant's inventive-step attack based on D1 in combination with common general knowledge. The board considered that this attack had been substantiated for the first time at the oral proceedings before it; the appellant's earlier general submissions on inventive step were regarded as unsubstantiated and were not taken into consideration, since they did not constitute the party's complete case within the meaning of Art. 12(2) RPBA 2007, which corresponded to Art. 12(3) RPBA 2020. In reply to the board's communication, the appellant had provided neither substantiated arguments nor comments on the preliminary opinion of the board in this regard. Thus, in the board's view, the respondent had every reason to believe that a lack of inventive step objection was no longer being pursued. Considering all the circumstances of the case, the board concluded that admitting this attack into the proceedings would not only substantially add to and considerably change the complexity of the matter to be discussed, but would also be contrary to the need for procedural economy and would take the respondent by surprise.

In T 1217/17 the board, referring to Art. 12(2) and (4) RPBA 2007, decided to disregard several lines of attack set out in the reply to the appeal on the basis that they were not sufficiently substantiated. At the oral proceedings, the respondent (opponent) announced an "expansion" on its submissions, but the board considered that this would substantially amend its appeal case (see abstract in chapter V.A.4.2.2k). Exercising the discretion conferred on it under Art. 13(1) RPBA 2020 (Art. 13(2) RPBA 2020 was not yet applicable), the board took account, in particular, of the stage reached in the proceedings and the need for procedural economy. It observed that the submissions in question were entirely new and, if admitted, would have introduced complex new issues at a very late stage in the proceedings, and the ensuing discussion would inevitably be detrimental to procedural economy. In such circumstances, the appellant could not be required to come up at short notice with a defence against attacks first launched at the oral proceedings.

- g) Late-filed evidence of a public prior use – not admitted

In T 552/18 the board did not admit further evidence of a public prior use filed in reply to its communication under Art. 15(1) RPBA 2007 for the following reasons: These documents had been submitted at a very late stage of the proceedings and raised new questions. Although appellant 2 (opponent) had provided reasons why the documents had only been retrieved when they were, the board considered that there was no justification why they could not have been retrieved earlier if sufficient effort had been made. According to the board, there was no cogent reason why the evidence relating to the prior use had

been submitted piecemeal. The board also held that the admission of these documents would go against the interests of procedural economy as laid down in Art. 13(1) RPBA 2020 and would require an adjournment of the oral proceedings as mentioned in Art. 13(3) RPBA 2007. Moreover, the documents presented did not enable the issues relating to the purity of the prior used powder to be resolved, as was required by Art. 13(1) RPBA 2020. The board also underlined that these issues' pertinence had already been known in the opposition proceedings.

- h) Communication in preparation for the oral proceedings not an invitation to file further submissions on known objections

In T.154/16 the board noted that it was the boards' established case law that the purpose of a communication from the board under Art. 15(1) RPBA 2007 was to prepare the oral proceedings; it was not an invitation to file additional submissions (with reference to Case Law of the Boards of Appeal, 9th ed. 2019, V.A.4.7.). According to the appellant (opponent), its new line of argument on inventive step, based on an additional document, was intended to bolster its existing line of attack by taking the board's preliminary opinion into account. For the board, this was not an adequate reason as it took no account of the procedural stage already reached, the potential for the other party to be taken by surprise or the fact that, if issues not previously discussed had to be dealt with at the oral proceedings, they might have to be adjourned instead of being closed with a final decision, which would be incompatible with the object of Art. 15(6) RPBA 2020. Admitting this late-filed and unexpected line of attack would run counter to both the need for procedural economy, reflected in the parties' duty to present a complete appeal case at a very early stage, and the principle of procedural fairness.

In T.102/16 the patent proprietor had filed document D26 in response to the communication under Art. 15(1) RPBA 2007 with a view to refuting the board's preliminary opinion that the prior art destroyed the novelty of the subject-matter of claim 1 according to the main request. However, the board considered that the proprietor had not put forward compelling reasons justifying filing the document at such a late stage in the proceedings. The board pointed out that it had based its communication on the objection of a lack of novelty previously raised by the opponent during both the opposition and the appeal proceedings and on which the contested decision was based. In addition, the board considered that D26's content was irrelevant for deciding on the issues of novelty and/or inventive step. It therefore refused to admit D26 (Art. 13(1) RPBA 2020 and Art. 13(1) and (3) RPBA 2007).

- i) Objections not a reaction to unexpected developments in the appeal proceedings – not admitted

In T.140/15 the appellant (opponent) first filed an inventive-step objection at the oral proceedings. The board refused to admit it (Art. 13(1) RPBA 2020; Art. 13(2) RPBA 2020 was not yet applicable) because it could see no convincing reason for the late amendment to the appellant's case. That a board might ultimately be left unconvinced by a party's case to date was a foreseeable possibility and not a new – and still less unexpected – development in the proceedings. The board also held that the need to address a new

objection at an extremely late stage in the proceedings was not in keeping with the need for **procedural economy**. It made no difference that an objection based on the same documents but in reverse order had been raised earlier in the proceedings; this was still a new objection and its discussion would not necessarily take a similar course to that of the earlier one. However, see also T. 310/18, summarised in chapter V.A.4.4.6b) above, in which the board admitted an objection based on a combination of the same documents as before but in reverse order.

In T. 1014/17 the appellant (opponent) had not raised its new clarity objection to the main request until after the oral proceedings had been arranged. The main request had already been discussed at the oral proceedings before the opposition division, including in terms of its clarity, but the clarity objection now at issue had not been raised then. Nor had it been raised in the grounds of appeal, even though other clarity objections had been submitted there. The board considered that, in the circumstances, the appellant had already had ample opportunity to revise its position on the clarity of claim 1 and raise appropriate objections, and could have done so in its grounds of appeal at the latest. What was more, it had had a responsibility to do so in view of what was required for properly conducted proceedings, including the duty on the parties to file all facts, evidence, arguments and requests **as early and as completely as possible** (Art. 12(2) RPBA 2020), and also for reasons of fairness towards the respondent (patent proprietor), who had to be able to see as early as possible to what extent its patent was being challenged and on what grounds. The board refused to admit the objection under Art. 13(1) RPBA 2020 and Art. 13(1) and (3) RPBA 2007 (Art. 25(3) RPBA 2020).

In T. 329/16 the board referred to Art. 12(3) RPBA 2020 and concluded that the onus had been on the opponent's to make a substantiated case in support of its inventive-step objections in its reply, even though the opposition decision had found in its decision that the subject-matter of claim 1 of auxiliary request 1 lacked novelty. Given that the patent proprietor had made a detailed case in support of the subject-matter's novelty in its grounds of appeal, the opponent could not rely on the board's reaching the same conclusion as the opposition division. Since the opponent only substantiated its new objections at the oral proceedings, the board refused to admit them under Art. 13(1) RPBA 2020.

- j) New document originating from the patent proprietor submitted by the appellant-opponent – not admitted

In T. 533/17 the appellant (opponent) argued that a poster (D19) and two related documents, filed after its grounds of appeal, should be considered since the respondent (patent proprietor) had apparently concealed this earlier own publication. The board, however, noted that R. 42(1)(b) EPC did not put a stringent obligation on applicants to acknowledge prior art known to them at the time of filing their application. Therefore, the failure to acknowledge D19 in the patent in suit was not a sufficient reason for admitting this document into the appeal proceedings. Moreover, the appellant had not provided a convincing justification of why it had not been possible to find D19 when preparing this case at the opposition stage. The new documents were therefore not considered, in accordance with Art. 13(1) and 25(3) RPBA 2020.

4.5. Third level of the convergence approach – submissions filed after notification of summons or after expiry of period specified in Rule 100(2) EPC communication – Article 13(2) RPBA 2020

4.5.1 Principles

Art. 13(2) RPBA 2020 implements the third level of the convergent approach applicable in appeal proceedings. Art. 13(2) RPBA 2020 imposes the most stringent limitations on a party wishing to amend its appeal case at an advanced stage of the proceedings, namely after expiry of a period set by the board of appeal in a communication under R. 100(2) EPC or, where no such communication is issued, after notification of the summons to oral proceedings (see document CA/3/19, section VI, explanatory remarks on Art. 13(2) RPBA 2020, supplementary publication 2, OJ 2020; later cancellation of the oral proceedings is immaterial for the application of Art. 13(2) RPBA 2020; see T 2279/16). Art. 13(2) RPBA 2020 provides that any amendment to a party's appeal case made at this stage of proceedings will, in principle, not be taken into account unless there are exceptional circumstances, which have been justified with cogent reasons by the party concerned.

While numerous decisions emphasise that the party needs to **show compelling reasons** why the circumstances are exceptional (see e.g. T 1107/16, T 2486/16), T 1294/16 points to an exception: Cogent reasons need not be brought forward by the party if the board, of its own motion, finds the circumstances exceptional in view of the purpose of the convergent approach.

In T 2486/16 the board emphasised that a party, when providing its "cogent reasons", should not only identify the circumstances invoked and explain why they were to be regarded as exceptional but also explain why these circumstances had the direct result of preventing it from filing its requests at an earlier stage. Similarly, in T 1707/17 the board held that the cogent reasons referred to in Art. 13(2) RPBA 2020 should include reasons why it was not possible to file the amendment earlier. In T 545/18, however, the board construed "exceptional circumstances" within the meaning of Art. 13(2) RPBA 2020 more broadly and did not require such a causal link between exceptional circumstances and late filing. See also in this chapter V.A.4.5.4b) "Causal link between the exceptional circumstances and the late filing" below.

As regards the meaning of the term "**exceptional circumstances**", in many decisions the boards considered that exceptional circumstances concerned new or unforeseen developments in the appeal proceedings, such as new objections raised by the board or another party (T 2329/15, see also T 1702/18), whereas the normal course of events could not justify late submissions (see e.g. T 1870/15, T 2539/16). In T 1294/16, however, the board underlined that the motivation for the convergent approach was the procedural economy of the appeal proceedings. Hence, if admittance of a (late-filed) submission was not detrimental to procedural economy, the board considered it appropriate to accept that there were "exceptional circumstances" within the meaning of Art. 13(2) RPBA 2020, provided that this did not adversely affect any other party. See also T 2135/18. In T 713/14 the board, when assessing whether there were exceptional circumstances, took the entire

background to the case into account, as well as the fact that the amendments (deletions of alternatives and restriction to embodiments of dependent claims) did not introduce any new issues and that the appellant had had ample opportunity to object to all embodiments claimed. On the interpretation of "exceptional circumstances", see also in this chapter [V.A.4.5.4a](#)) below.

In [T 1904/16](#) the board recalled the following in the context of this requirement of exceptional circumstances: Under [Art. 12\(2\) RPBA 2007](#), which substantially corresponded to [Art. 12\(3\) RPBA 2020](#), the statement of grounds of appeal and the reply had to contain a party's complete case. Together with the appealed decision, the statement of grounds of appeal and the reply to it determined the subject-matter of an appeal ([Art. 12\(1\) RPBA 2020](#)). The purpose of this provision, under both versions of the Rules of Procedure, was to **ensure fair proceedings** for all concerned and to enable the board to start working on the case on the basis of the parties' complete submissions.

In [T 1294/16](#) the board discussed the question of how the term "in principle" in [Art. 13\(2\) RPBA 2020](#) had to be construed. The board discarded the possibility that this term was meant to provide a residue of discretion for the board to admit a request even in the absence of exceptional circumstances (or where no cogent reasons were supplied as justification for them) and concluded that it should be ignored.

In the majority of decisions, the boards first examined whether there were exceptional circumstances and, only if there were, then exercised their **discretion as to the admittance** of the amendment. With reference to CA/3/19 (section VI, explanatory remarks on [Art. 13\(2\) RPBA 2020](#)), several boards have held that the basic principle of the third level of the convergent approach is that, at this stage of the appeal proceedings, amendments to a party's appeal case are not to be taken into consideration and that only a limited exception is provided for, which requires a party to present compelling reasons which justify clearly why the circumstances leading to the amendment are indeed exceptional in the particular appeal ([T 689/15](#), [T 552/16](#) and [T 2778/17](#)). In the same vein and again with reference to CA/3/19, the boards in [T 989/15](#), [T 1107/16](#), [T 954/17](#) and [T 709/16](#) stated that, if exceptional circumstances were shown to exist, a board could exercise its discretion and decide to admit the amendment.

In [T 709/16](#) it was emphasised that, if the board accepted the party's argument that the circumstances were exceptional, it was still within the board's discretion whether to admit the request into the appeal proceedings (see also [T 2010/15](#)). Likewise, in [T 1080/15](#) the board noted that, although an objection raised for the first time by the board could qualify as an exceptional circumstance justifying the admission of a request, it did **not** give the appellant **carte blanche** to amend the claims at wish. This two-step evaluation (exceptional circumstances, discretion) is reflected in the structure of this chapter.

In other decisions, however, the boards assessed the requirement of exceptional circumstances pursuant to [Art. 13\(2\) RPBA 2020](#) and the criteria for the exercise of discretion in one step (see e.g. [T 2703/16](#), [T 1055/17](#), [T 1790/17](#), [T 713/14](#), [T 917/18](#)).